

19STCV40091 19STCV40091

County: los-angeles

Division: Civil Law and Motion

Department: 734

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The Court has

reviewed the ex parte application filed by Plaintiff/Judgment Debtor Shahrouz Jahanshahi, and the declaration of Bruce A. Greenberg ("Greenberg Declaration") in opposition, and finds the matter suitable for decision in chambers without argument. (Code Civ. Proc. § 166(a)(1).)

Plaintiff/Judgment Debtor argues that the Court should (1) issue a temporary stay of enforcement of the August 27, 2026 writ of execution, (2) order Defendant/Judgment Creditor to immediately serve all August 21, 2026 and August 27, 2026 filings, (3) shorten time on Plaintiff's motion to recall/quash the writ or continue/strike Defendant/Judgment Creditor's post-judgment discovery motion, and (4) set an order to show sanctions for Defendant/Judgment Creditor's failure to comply with the Court's order requiring service of all documents.

The Greenberg Declaration contends that his office served Plaintiff/Judgment Creditor by mail with the August 21, 2026 Application for Issuance of Writ of Execution and Writ of Execution.

The Court's file reflects a proof of service dated August 21, 2026 indicating service on that date. The Court also notes that Defendant/Judgment Creditor's motion for post-judgment discovery is accompanied by a proof of service indicating service by mail on August 20, 2026. Based on these proofs of service, it appears that the documents were served in accordance with the Rules of Court and this Court's order directing Defendant/Judgment Creditor to serve all documents on Plaintiff/Judgment Debtor. Evidence Code section 641 provides a presumption that a letter correctly addressed and properly mailed is received; Plaintiff's denial of receipt may ultimately rebut the presumption of mailing, but is not dispositive at this time given the short

time between the asserted mailing and the filing of this application. Plaintiff may renew the request for sanctions if the mail is not received within 10 days of this order.

As for the August 27, 2026 writ of execution that Defendant/Judgment Creditor obtained from the Clerk, the unsigned proposed writ was part of the documents listed on the August 21, 2026 proof of service filed with the Court. Service of the proposed writ appears to have been proper, and the writ as actually issued by the Clerk on August 27, 2026 appears to be consistent with the application.

In light of the foregoing, there appears to be no lapse in Defendant/Judgment Creditor's compliance with this Court's order directing service: the ex parte application is moot with regard to service and there appears to be no basis for sanctions due to noncompliance.

With regard to Plaintiff/Judgment Creditor's request for a stay of enforcement of the writ of execution, it does not appear that Plaintiff has established any statutory basis for a pre-levy stay of enforcement, and Plaintiff's chief complaint appears to be the lack of receipt of documents Defendant supposedly served. Delayed receipt of any service copies is not a basis to stay enforcement.

With regard to Plaintiff's request to shorten time on a motion to quash, the Court notes that no such motion appears to have been filed; Plaintiff may renew the request once the motion has been filed. With regard to Plaintiff's request to continue the hearing on Defendant's motion for post-judgment discovery, the Court finds no basis to continue the hearing.

For the foregoing reasons, the application is DENIED in full.